

manner most favorable to CC, this court cannot conjure a cause of action independent of professional malpractice. This certainly is not a matter of conversion.

Thus, this court finds that the causes of action in the Cross Complaint are subject to a one-year period of limitation.

It is when CC comes into possession of an itemized billing statement that he *should* be aware of the facts giving rise to a claim. It is this same event that would begin the one-year period of limitation. However, it is unclear when CC learned of these billing practices, or even when he should have learned of these billing practices.

Though CC made a payment of approximately \$30,000 (excluding the separate amount for forensic work) by August of 2022, and the professional relationship between CD and CC clearly ended no later than 11/29/23, there is no indication of when CD provided to CC an itemized billing statement, one that would detail the particular items and services for which CD sought recompense. It certainly *may* have been the case that CD provided an itemized billing statement in 2022, which led to the \$30,000 payment by CC. But it is also reasonable to infer that CD did not provide any itemized billing until sending the demand letter in 2025, and that CC made the \$30,000 payment in 2022 after receiving only a basic invoice from CD, one that was in written form or even provided orally and consisted only of an amount and did not contain any itemized detail.

Yet, that moment is unclear. The date that CD provided itemization of the services he provided is missing.

Thus, though the Cross Complaint may show that the causes of action are time barred, this is not enough.

Disposition

Demurrer is overruled.

Cross Complainant to file Order and serve copy of filed Order on Cross Defendant.

**17. 9:00 AM CASE NUMBER: MSL19-03670
CASE NAME: AUTOVEST VS POWELL
HEARING IN RE: MOTION TO VACATE JUDGMENT
FILED BY:**

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is

requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant filed a Motion to Set Aside the default judgment. The Motion is unopposed but there is no evidence that Defendant provided any notice of the Motion or the hearing to Plaintiff.

Disposition

Motion will be continued to 10/13/26, 9am.

Defendant to provide notice of Motion and of the hearing to Plaintiff.

18. 9:00 AM CASE NUMBER: N26-1130
CASE NAME: MHC FINANCING LIMITED PARTNERSHIP V. RENGHINI
HEARING IN RE: VERIFIED PETITION FOR INJUNCTIVE RELIEF PURSUANT TO CIV. CODE 798.88
FILED BY: MHC FINANCING LIMITED PARTNERSHIP

***TENTATIVE RULING**

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Petitioner has filed a Petition for Injunctive Relief, under section 798.88 of the Civil Code. The Petition is unopposed but there is no evidence that Petitioner provided notice to Respondent of the Petition or of the hearing.

Disposition

Petition will be continued to 10/13/26, 9am.

Petitioner to serve Respondent with a copy of the filed Petition, as well as with notice of the next hearing.